

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person MUST speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CAITLIN TALBOT,

Petitioner

VS.

SRIVATSAN SRINIVASAN,

Respondent

) Case Number: FPT-23-378236

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties shall appear in person or via Zoom video at 9am on 5/5/2026 in Department 404. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Caitlin Talbot (Mother) and Srivatsan Srinivasan (Father) have one minor child together, Suzanne (Zana), who is almost 7 years old (DOB 5/6/2019). The parties have joint legal and joint physical custody of Zana and currently follow a 2-2-5-5 parenting time schedule.
- 2) On 2/11/2026, Mother filed a request for: (1) “sole decision-making about therapy” and “tie-breaking authority in health/legal matters given the obstacles I continue to face in trying to obtain therapy for Zana”; (2) Zana to attend therapy as recommended "by her pediatrician (and endorsed by her rheumatologist)"; (3) modification of physical custody to an alternating week schedule; (4) Father to attend counseling so he can “understand that punishing Zana when she has an emotional response (telling her she can’t cry, telling her he won’t play with her if she talks about me, telling her this is her life and get used to it) is detrimental to Zana"; (5) Zana to participate in one consistent weekend activity; (6) a camp schedule during summer breaks; and (7) exchange of

1 travel itineraries when traveling overnight outside of the Bay Area with Zana (one week in
2 advance for 1-3 night trips and a month in advance for longer trips). She states Zana “sobs
3 deeply” when she leaves Mother and returns to Mother in “shambles” after spending time with
4 Father. She states that Zana has been asking to spend less time with Father and that the stress she
5 is experiencing exacerbates the autoimmune condition she has. Mother attaches Zana’s medical
6 records in support of her request.

- 7 3) Father has filed a responsive declaration in which he asks the Court to deny all of Mother’s
8 requests and grant his request for an order requiring the parties to lodge and serve medical records
9 or request to file them under seal. As to therapy for Zana, he states the issue is moot because the
10 parties have already agreed to have her attend. He states he never opposed therapy; instead, he
11 simply wished to be included in the process because Mother unilaterally reached out to Kaiser
12 and conducted an intake. As to physical custody, Father notes this is the third modification
13 request Mother has filed since April 2024 and that the Court has declined to change the 50/50
14 schedule, most recently in February 2025. He states that Zana is a happy, well-adjusted child and
15 that he has only seen her have age-appropriate minor tantrums or crying episodes. He has also
16 never heard Zana say she wants to spend less time with him. He expresses concern that Mother
17 “may be planting ideas in Zana’s head”; he states that Zana once confided in him that Mother told
18 her to tell the pediatrician that she wanted more time with Mother. He believes Mother has also
19 inappropriately discussed matters regarding the family law case with or in front of Zana.
- 20 4) After the parties attended mediation, Father filed a supplemental declaration noting that Mother,
21 for the first time at mediation, asked for a Tier II interview of Zana’s therapist. He opposes this
22 request, noting that the therapy process should be confidential and that Zana has attended only
23 two therapy sessions. Mother filed a reply in which she denies coaching Zana. She states that
24 Zana is an intelligent, articulate child who knows what she wants and is able to express her
25 wishes but is not comfortable telling Father how she feels. Mother asks for a Tier II interview and
26 lists 10 individuals she believes has relevant information.

27 **B. Findings and Orders**

- 28 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
29 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

1 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
2 child is the United States.

- 3 2) **The parties shall appear in person or via Zoom video at 9am on 5/5/2026 in Department**
4 **404.** The Court is currently inclined to deny Mother's request for a change in legal custody, order
5 that Zana remain in therapy, and deny Mother's request to decrease Father's parenting time. The
6 Court may, at the hearing, consider an alternative 50/50 parenting time schedule such as a 2-2-3.
7 The Court intends to order the parties to lodge and serve medical records instead of filing them
8 with their pleadings. The Court intends to take sworn testimony and/or hear argument from the
9 parties at the hearing regarding all requests.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

BRANDON BAKHTIAR,

Petitioner

VS.

STEPHANIE MARIE EASTMAN,

Respondent

) Case Number: FDI-18-789193

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties shall appear in person or via Zoom video at 9am on 5/5/2026 in Department 404. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Brandon Bakhtiar (Father) and Stephanie Marie Eastman (Mother) have one minor child together, Shiloe (DOB 2/17/17, age 9). The parties share joint legal custody; Mother has sole physical custody.
- 2) On 11/18/2025, the Court increased Father's parenting time according to a phased step-up plan. The Court ordered that beginning in January 2026, Father's parenting time shall be every Tuesday from 2:30pm or 2:35pm (depending on whether school/camp is in session) to 7pm and on the second and fourth weekends of the month, from Sunday at 1pm to Monday at 8:20am or 8:30am (depending on whether school/camp is in session). The Court ordered that the weekend time would increase to Saturday to Monday on 4/1/2026 and from Friday to Monday on 7/1/2026. The Court issued other orders relating to holidays and vacations and ordered Father to complete his anger management program and provide proof of completion to Mother.

- 1 3) On 3/3/2026, Mother filed a request to suspend the step-up plan, remove the Tuesday visits,
2 modify the weekend visits, order a psychological evaluation for Father, and order Father to attend
3 anger management classes. She sets forth the history of the case including the issuance of
4 criminal protective orders, Father's failure to comply with supervised visits, and Father's decision
5 to remain absent from Shiloe's life for a period of two years. She states that Father continues to
6 characterize his criminal matters as "mere 'allegations' ” and has failed to comply with the current
7 parenting time order, "causing stress and instability for the child and her afterschool programs."
8 She provides numerous examples of Father being late to visits and describes Shiloe's distress,
9 including saying the visits are "ruining her life," and saying after an overnight visit with Father
10 that she thinks about death "everyday."
- 11 4) Father filed a response in which he denies Mother's allegations, states that he believes Mother is
12 coaching Shiloe, and asks for a different step-up schedule that includes adding an overnight visit
13 from Tuesday to Wednesday beginning 6/1/2026, increasing his weekend visits to Friday to
14 Monday starting 9/1/2026, increasing his weekend visits to Thursday to Monday starting
15 12/1/2026, and moving to a 50/50 parenting time schedule starting in 2027. He states he
16 completed many classes including parenting classes and complied with the order requiring him to
17 provide proof of completion of an anger management class. He attaches to his declaration a letter
18 of completion of his anger management program.
- 19 5) Mother filed a reply in which she denies she is trying to influence Shiloe. She states it is Father
20 who has been telling Shiloe negative and false things about Mother and talking to her extensively
21 about the case, including reviewing court filings with her. Mother reiterates her request to modify
22 Father's parenting time.

23 **B. Findings and Orders**

- 24 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
25 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
26 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
27 child is the United States.
- 28 2) **The parties shall appear in person or via Zoom video at 9am on 5/5/2026 in Department**
29 **404.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AURA DOLEA CASTANON,

Petitioner

VS.

HECTOR FIDENCIO PEREZ,

Respondent

) Case Number: FDI-19-791343

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER PROPERTY CONTROL, ENFORCEMENT OF FOAH TO SELL
PROPERTY AND REQUEST FOR ELISOR TO SIGN

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video. Husband's attorney shall be prepared to explain whether he notified Husband about Wife's Request for Order filed 3/17/2026 and the 5/5/2026 hearing date. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

At the hearing, the Court intends to adopt the following findings and orders, absent good cause shown.

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Aura Castanon (Wife) and Respondent Hector Perez (Husband) married on 9/11/2002 and separated on 3/5/2019, for a marriage of 16 years and 5 months. The parties have one adult child, Franchesco (DOB: 12/12/2005, age 20). Wife is represented by attorney Kathleen Morgan. Husband is represented by attorney Crisostomo Ibarra.
- 2) No Judgment has been entered in this matter to date.

1 3) On 6/2/2025, per the Findings and Order After Hearing filed 6/11/2025, Judge Costin made a
2 finding that the community property located at 1216 Newhall St. in San Francisco has a value of
3 \$840,000. The Court made the following orders: “6) On or before 9/30/25, Husband shall pay to
4 Wife a sum of \$135,828... In exchange, Wife shall quit-claim her right, title, and interest to the
5 home to Husband. After the successful completion of these transactions, Husband shall be
6 entitled to exclusive possession of the home, and Husband shall be solely responsible for all
7 mortgage payments on the home and shall hold Wife harmless therefrom... If Husband is unable
8 to pay Wife the sum of \$135,828, then it is ordered that the home be placed on the market and
9 sold. The net proceeds of the sale (after the payment of the outstanding mortgage, closing costs,
10 and real estate commission fees) shall be equally divided between the parties.”

11 4) Now on for hearing is Wife’s Request for Order filed 3/17/2026. Wife states Husband has not
12 paid the equalizing payment set forth in the Findings and Order After Hearing filed 6/11/2025
13 and, to her knowledge, has not made any efforts to sell the Newhall residence. Wife also states
14 Husband will not communicate with her. Wife states she contacted Husband’s attorney of record
15 who told her he has also not been able to communicate with Husband. Wife asks the Court to:

- 16 a. Order Husband to prepare the Newhall residence for sale no later than May 1, 2026;
 - 17 b. Order Husband to forthwith cooperate with realtor Mirna Tin of Real Estate Broker Firm
18 Keller Williams Santa Clara Valley, including executing a listing agreement, preparing
19 the Newhall residence for sale, signing any and all documents necessary to prepare the
20 property to be listed, to list the property, and sell the property within 48 hours of receipt
21 of the documents;
 - 22 c. Permit Petitioner to file an ex parte Request for Order asking the Court to appoint the
23 Clerk of the Court or Clerk’s Designee as elisor to sign any documents on Husband’s
24 behalf if Husband fails to comply with signing any documents necessary to effectuate the
25 orders set forth above;
 - 26 d. Order the proceeds of the sale of the home be divided equally pursuant to the Findings
27 and Order After Hearing filed 6/11/2025; and
- 28
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- e. Award Wife \$3,000 in Family Code section 271 attorney's fees sanctions be granted, to be paid from Husband's share of the net sale proceeds, due to Wife's needing to Wife to file this Request for Order.
- 5) On 3/17/2026, Wife's attorney Kathleen Morgan filed a declaration. Ms. Morgan states she has been hired by Wife through the low-fee panel of the San Francisco Bar Association. Ms. Morgan states she is charging Wife \$250 per hour and she has spent 6 hours on this motion to date. Ms. Morgan anticipates Wife will incur a total of \$3,000 in fees related to the instant motion.
- 6) On 3/18/2026, Wife filed a Memorandum in Support of Request for Order, citing Family Code section 271.
- 7) Per the Proof of Electronic Service filed 3/18/2026, Wife's Request for Order and related pleadings were emailed to Husband's attorney on 3/18/2026.
- 8) Husband did not file a Responsive Declaration.
- 9) The Court notes there is a hearing currently set for 7/2/2026 at 9:00 AM in Dept. 404 on Husband's attorney's request to be relieved as counsel, filed 4/10/2026.

B. Findings and Order

- 1) The Court hereby grants Wife's unopposed request.
- 2) No later than 6/1/2026, Husband shall prepare the residence located at 1216 Newhall St. San Francisco, CA 94124 for sale.
- 3) Mirna Tin of Real Estate Broker Firm Keller Williams Santa Clara Valley is hereby appointed as the real estate agent who shall assist the parties with preparing the Newhall residence for sale and to list, market, and sell the property.
- 4) Husband is ordered to fully cooperate with Ms. Tin regarding the home sale process, including following all reasonable recommendations related to preparing the home for sale and signing any and all documents necessary for the Newhall residence to be listed and sold within 48 hours of receipt of a request for signature on such documents.
- 5) If Husband fails to sign any documents necessary for the Newhall residence to be listed and sold, Wife may file an ex parte Request for Order asking the Court to appoint the Clerk of the Court or Clerk's Designee as elisor to sign any such documents. Wife shall attach to any such ex parte Request for Order a copy of the documents that require Husband's signature.

- 1 6) Effective immediately, both parties shall be CC'd on all communications with Ms. Tin.
- 2 7) The Court hereby grants to Wife \$3,000 in Family Code section 271 attorney's fees sanctions.
- 3 This shall be paid to Wife from Husband's share of the net sale proceeds.
- 4 8) Once the Newhall residence is sold, the net proceeds of the sale (after payment of the outstanding
- 5 mortgage, closing costs, and real estate commission fees) shall be equally divided between the
- 6 parties, except that Wife shall receive an additional \$3,000 from Husband's share of the net sale
- 7 proceeds for the attorney's fees sanctions awarded above.
- 8 9) Wife's attorney shall prepare the Findings and Order After Hearing.
- 9 10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
- 10 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
- 11 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
- 12 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
- 13 proposed order after hearing directly to the court. Failure to submit the order after hearing within
- 14 10 days may allow the other party to prepare a proposed order and submit it to the court in
- 15 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DERA-JILL LAMONTAGNE POZNER,

Petitioner

VS.

ZACHERY BLAIR POZNER,

Respondent

) Case Number: FDI-21-794867

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

- 1) On for hearing is Respondent Zachary Blair Pozner Order to Show Cause Re: Contempt filed 3/6/2026.
- 2) Respondent alleges that Petitioner Dera-Jill Lamontagne Pozner violated the Findings and Order After Hearing filed 11/20/2025 and Temporary Emergency (Ex Parte) Orders filed 1/26/2026 which required Petitioner to make specified payments to Respondent.
- 3) There is no Proof of Service on file demonstrating service of Respondent's Order to Show Cause Re: Contempt.
- 4) The hearing on Respondent's Order to Show Cause Re: Contempt filed 3/6/2026 is hereby continued to **Tuesday, 7/7/2026 at 9:00 AM in Dept. 404.**
- 5) By the deadlines specified in the Code of Civil Procedure, Respondent shall have his Order to Show Cause Re: Contempt filed 3/6/2026 personally served on Petitioner, along with a copy of the Tentative Ruling Instructions and the Findings and Order After Hearing for the 5/5/2026 hearing date.
- 6) Petitioner shall file and serve an Income and Expense Declaration at least 5 calendar days prior to the next hearing date if Petitioner will be requiring the appointment of contempt counsel to represent her.

1 7) Respondent's attorney shall prepare the Findings and Order After Hearing.

2 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10
3 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel
4 for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the
5 other party did not appear or the matter was uncontested, submit the proposed order after hearing
6 directly to the court. Failure to submit the order after hearing within 10 days may allow the other
7 party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court,
8 Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CATHERINE ANNE COOKE CAMERON,

Petitioner

VS.

DELROY HUBORN LUGARD CAMERON,

Respondent

) Case Number: FDI-24-800519

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER CHANGE OF ATTORNEY FEES AND COSTS, MODIFICATION AND
TERMINATION OF PRIOR FEE ORDER AND REQUEST FOR SANCTION 271 SANCTIONS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Catherine Cameron (Wife) and Respondent Delroy Cameron (Husband) married on 3/17/2017. The parties agree they separated in 2024 (but disagree regarding the exact date), for a marriage of at least 7 years. The parties have no minor children in common. However, Husband is the father of a child named Max who was born on 5/17/2025 via surrogate. Wife states she was not involved with the surrogacy arrangement and she is not a legal parent of Max. Wife is represented by attorney Charles Young. Husband is self-represented.
- 2) On 12/11/2024, a Stipulation Regarding Vicente Street Apartment and Order Thereon was entered giving Wife exclusive occupancy of an apartment located on Vicente Street and requiring Husband to pay the rent and related bills for the apartment.
- 3) On for hearing is Husband's Request for Order filed 3/12/2026. Husband states he agreed to pay Wife's attorney's fees on a needs-basis, but the case has been pending for 16 months with little progress toward a final judgment. Husband states he pays \$2,500 per month for childcare for his

son which hinders his ability to pay Wife's attorney's fees. Husband also states Wife served her Preliminary Declaration of Disclosure 125 days after the Petition was filed, but has yet to file a Declaration Regarding Service of Preliminary Declaration of Disclosure (FL-141). Husband also states Wife's former attorney Nancy Rubin and Wife's current attorney have caused delays, acted in bad faith, and taken unreasonable settlement positions including requesting that Husband be 100% responsible for community debts. Husband also states Wife has refused his requests to go to mediation or to set a Mandatory Settlement Conference. Husband filed numerous declarations on 3/20/2026, 3/24/2026, and 4/7/2026 providing additional exhibits and information to the Court. Husband asks the Court to:

- a. Terminate "the order for [Husband] to pay [Wife]'s ongoing attorney fees" effective immediately;
 - b. Deem all fees paid or due to be paid to Wife's prior attorney Nancy Rubin (\$15,000) an "advance" against Petitioner's share of community property;
 - c. Impose sanctions under Family Code section 271 in the amount of \$31,550 to be deducted from Petitioner's final settlement; and
 - d. Cap attorney's fees awardable to Wife at \$20,000.
- 4) On 3/20/2026, Husband filed an Income and Expense Declaration. See summary of Husband's Amended Income and Expense Declaration filed 4/29/2026 below.
- 5) On 4/22/2026, Wife filed a Responsive Declaration. Wife states she has serious health issues and is permanently disabled. Wife notes Husband's end of year paycheck for 2024 showed he earned a total of \$307,620 in gross wages plus an additional \$150,000 in RSU income for total income of \$456,440. Wife notes her prior attorney was facing health issues and her current attorney was working through a trial, which may have caused some delays, and denies that she has been litigating in bad faith. Wife asks the Court to:
- a. Deny Husband's request to modify or terminate the prior fee order;
 - b. Deny Husband's request for Family Code section 271 attorney's fees and sanctions in the amount of \$31,550;
 - c. Award Wife \$50,000 in Family Code Section 2030 fees, paid in a lump sum or monthly at \$10,000 per month; and

- 1 d. Order Husband to pay guideline temporary spousal support with a Smith/Ostler table for
2 additional income, retroactive to the filing of Husband's Request for Order; and
3 e. Make any other orders the Court deems just and reasonable.
- 4 6) The Court notes there is currently no Court order requiring Husband to pay Wife's attorney's
5 fees. Wife also states in her Responsive Declaration that she has "no idea what Delroy refers to
6 when he asks the Court to terminate a Family Code section 2030 award."
- 7 7) On 4/22/2026, Wife filed an Income and Expense Declaration. Wife states she was last employed
8 as a Special Day Class Teacher but her employment ended on June 2010. Wife states she receives
9 Social Security income of \$1,036 per month. Wife states she has \$18,547 in cash savings in a
10 joint account held with Husband. Wife also has \$2,049 in separate property cash savings. Wife
11 states she has \$0 in easily saleable investments. She states she has \$4,500 in personal property.
12 Wife states that her actual expenses total \$9,287 per month, and that \$4,747 of this is paid using
13 contributions by Husband. Wife states she owes \$14,332 in credit card expenses and owes
14 \$32,000 to her mother for legal fees. Wife states she has paid her attorney \$16,095 to date (and
15 paid \$15,435 to her prior counsel) using a loan from her mother. Wife also states that she owes
16 her attorney "\$7,635+."
- 17 8) On 4/22/2026, Wife filed a Memorandum of Points and Authorities citing Family Code sections
18 271 and 2030.
- 19 9) On 4/22/2026, Wife's attorney Charles Young filed a declaration. Mr. Young states Wife has
20 incurred and paid fees in the amount of \$17,870 with Mr. Young's firm and Wife's work in
21 progress for April is \$8,520 as of 4/20/2026. Mr. Young anticipates Wife will incur an additional
22 \$5,000 through the hearing in this matter. Mr. Young also anticipates Wife will incur an
23 additional \$75,000 to finalize her divorce due to the combative nature of Husband, to hire a
24 forensic accountant to conduct a Marital Standard of Living analysis, to prepare a Hugh / Nelson
25 analysis, and to prepare QDROs.
- 26 10) On 4/28/2026, Wife filed a Statement of Support Calculations contending Husband should be
27 paying to Wife \$5,803 per month in temporary guideline spousal support.
- 28 11) On 4/28/2026, Husband filed a Reply Declaration. Husband states the community has \$91,000 in
29 liquid assets but the community also owes \$11,000 in debt. Husband states that a \$50,000 fee

award will render him insolvent for at least 60 days. Husband also states his net take home is \$10,000 per month and so he cannot pay a \$50,000 fee award in installments of \$10,000. Husband states his “next RSU inflow is not for six months.” Husband states he has “already paid Petitioner her share of post-separation RSUs, on par with a 15% Smith/Ostler percentage – except the April 2026 RSUs, which is pending disbursement. Respondent expects the total outstanding amount due to be around \$15,000 due mostly to depletion of the original \$25,00 deposited in the joint account in October 2025.” Husband states he is currently paying \$4,750 per month for Wife’s living expenses which represents 45% of his monthly net disposable income. Husband states he is voluntarily reducing his sanction request to \$15,500 “which represents the amount in debt servicing I will have unilaterally contributed while Petitioner refuses to take accountability for her half of the \$64,000 in community debt.” Husband asks the Court for an early distribution of a portion of the retirement account which he wants to use to extinguish \$64,000 in joint credit card debt and a Mandatory Settlement Conference for end of June.

12) On 4/29/2026, Husband filed an Amended Income and Expense Declaration. Husband states he is 46 years old and he has worked as a software engineer for Apple since 2016 (since before the parties married). Husband states he earns on average \$18,000 per month in salary and an additional \$1,500 per month in bonuses. Husband also states he earns on average \$15,309 from RSUs. Husband states he has \$15,874 in cash savings, \$67,536 in easily saleable investments, and \$106,428 in real property. Husband states his monthly expenses total \$15,743, including the rent paid for Wife’s apartment. Husband states he owes \$74,938 in credit card debt and an additional \$46,870 to the IRS. Husband states he has paid \$0 in attorney’s fees to date.

13) On 4/30/2026, Wife filed an Amended Statement of Support Calculations contending Husband should be paying to Wife \$5,413 per month in temporary guideline spousal support.

B. Findings and Order

1) Spousal Support

- a. The Court notes that Wife’s request for temporary spousal support orders exceed the scope of Husband’s Request for Order filed 3/12/2026. However, the Court notes that Husband has not objected to Wife’s request for temporary spousal support on this basis and he substantively responded to Wife’s request for temporary spousal support orders in

1 his Reply Declaration. On this basis and in the interest of judicial economy, the Court
2 will address Wife's request for spousal support orders below.

3 b. According to the XSpouse calculation attached hereto and incorporated herein, the Court
4 finds base guideline spousal support payable by Husband to Wife would be \$4,318 per
5 month.

6 c. In her 4/22/2026 Income and Expense Declaration, Wife states Husband is currently
7 paying the following monthly expenses on her behalf: rent (\$3,480), utilities (\$597.33),
8 cellphone and Internet service (\$220.64), laundry and cleaning (\$200), auto expense
9 (\$193.33), and Amazon (\$56.37). This amounts to \$4,747.67 per month, which is the
10 same amount that Husband reports he has been paying on Wife's behalf per month.

11 d. The Court notes that Husband appears to be paying for expenses on Wife's behalf that
12 exceed the requirements of the Stipulation and Order filed 12/11/2024. If Husband just
13 paid the expenses set forth in the Stipulation and Order filed 12/11/2024, it would
14 essentially equal the monthly temporary guideline spousal support figure. On this basis,
15 the Court does not find good cause to modify the current Stipulation and Order filed
16 12/11/2024.

17 e. However, the Court does find good cause to make a Smith / Ostler spousal support award
18 given that Husband reports earning bonuses and RSU income and there is currently no
19 Smith / Ostler support order in effect. Effective 5/5/2026, Husband shall pay to Wife
20 Smith / Ostler spousal support in accordance with the Annual Bonus Wages report
21 attached hereto within 10 days of receiving a bonus, separate property RSU income, or
22 other income above his base salary of \$18,000 per month. Husband shall provide to Wife
23 documentation (e.g., paystub) showing the additional income received simultaneously
24 with making payment.

25 f. The Court's jurisdiction to later make a determination regarding what Husband owes to
26 Wife for income generated from community property RSU is reserved.

27 2) Attorney's Fees and Costs

28 e. Regarding Wife's request for attorney's fees and costs, the Court notes that if Husband
29 were paying for just Wife's rent and utilities, he would have 60% of the parties'

combined net spendable base income and Wife would have 40% of the parties' combined net spendable base income. The Court also notes that although the parties report having significant assets, they are also heavily in debt. The Court further notes that Husband is paying \$2,500 per month towards his son's childcare expenses. Husband states he has contributed \$15,000 towards Wife's attorney's fees to date. The Court does not find that the issues in this case are very complex. The Court hereby awards to Wife an additional \$25,000 in attorney's fees and costs, which the Court finds is a just, reasonable, and necessary amount. This amount, in addition to the \$15,000 Husband has already paid for Wife's attorney's fees and costs, is being awarded to cover fees and costs incurred by Wife through entry of final Judgment if the parties are able to reach a global settlement in their case. If a long-cause hearing is set in this matter, this Court's jurisdiction to augment this fee award is reserved. Husband shall pay this amount to Wife from his separate property investment and cash holdings. Commencing 5/15/2026, Husband shall pay this amount to Wife in four installments of \$6,750, to be paid by the 15th of each month.

- f. Husband's request that the Court cap total fees awardable to Wife in this case at \$20,000 is denied.
- g. Husband's request that the Court deem all fees paid to Wife's prior attorney as an "advance" against Wife's share of the community property is denied.
- h. Husband's request for attorney's fees sanctions is denied.

3) Other Orders

- e. Wife shall file a Declaration Regarding Service of Preliminary Declaration of Disclosure (FL-141) no later than 5/15/2026.
- f. The Court's jurisdiction to reimburse to Husband for any portion of payments and contributions he has paid to service community debts since the date of separation is reserved for trial / final Judgment.
- g. Husband's request for an early distribution of the community retirement funds to extinguish joint credit card debt is denied as the Court is unable to divide community property prior to trial absent exigent circumstances.

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- h. Regarding Husband's request that the Court set a Mandatory Settlement conference for end of June, Husband is welcome to file an At Issue Memorandum which will lead to the setting of a Mandatory Settlement Conference.
- 4) The Court will prepare the Findings and Order After Hearing.

Fixed Shares	Husband	Wife	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	0	2026			
% time with NCP	0.00 %	0.00 %		Comb. net spendable	13650	13650
Filing status	HH/MLA	<-MFS	GUIDELINE	Percent change	0%	0%
# exemptions	2	1	Nets(adjusted)	Husband		
Wages+salary	18000	0	Husband	12382		
Self-employed income	0	264	Wife	1268	Payment cost/benefit	-4318
Other taxable income	0	1036	Total	13650	Net spendable income	8063
TANF+CS received	0	0	Support		Change from guideline	0
Other nontaxable income	0	0	Addons	0	% of combined spendable	59%
New spouse income	0	0	Guideln CS	0	% of saving over guideline	0%
401(k) employee contrib	1200	0	S.Clara SS	4318	Total taxes	4984
Adjustments to income	0	0	Total	4318	Dep. exemption value	0
SS paid prev marriage	0	0	-		# withholding allowances	0
CS paid prev marriage	0	0			Net wage paycheck	10479
Health insurance	634	0		Wife		
Other medical expense	0	0		Payment cost/benefit	4318	4318
Property tax expense	0	0		Net spendable income	5587	5587
Ded interest expense	0	0	Proposed		Change from guideline	0
Charitable contributions	0	0	Tactic 9		% of combined spendable	41%
Misc tax deductions	0	0	CS	0	% of saving over guideline	0%
Qual bus income ded	0	0	SS	4318	Total taxes	32
Required union dues	0	0	Total	4318	Dep. exemption value	0
Mandatory retirement	0	0			# withholding allowances	0w
Hardship deduction	0	0 *	Saving	0	Net wage paycheck	0
Other GDL deductions	0	0	Releases	0		
Child care expenses	0	0				

Husband pays Guideline SS, Proposed SS

Annual Bonus Income Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband

Husband's Bonus	Child Support		Spousal Support		Total CS	Total SS (adjusted)
	% of bonus	\$	% of bonus	\$		
0	0.00	0	0.00	0	0	0
5,000	0.00	0	25.22	1,261	0	53,083
10,000	0.00	0	25.22	2,522	0	54,344
15,000	0.00	0	25.22	3,783	0	55,605
20,000	0.00	0	25.22	5,044	0	56,866
25,000	0.00	0	25.22	6,305	0	58,127
30,000	0.00	0	25.22	7,566	0	59,388
35,000	0.00	0	24.94	8,728	0	60,550
40,000	0.00	0	24.57	9,829	0	61,651
45,000	0.00	0	24.29	10,930	0	62,752
50,000	0.00	0	24.06	12,031	0	63,853
55,000	0.00	0	23.88	13,132	0	64,954
60,000	0.00	0	23.72	14,233	0	66,055
65,000	0.00	0	23.59	15,334	0	67,156
70,000	0.00	0	23.48	16,435	0	68,257
75,000	0.00	0	23.38	17,536	0	69,358
80,000	0.00	0	23.30	18,637	0	70,459
85,000	0.00	0	23.22	19,738	0	71,560
90,000	0.00	0	23.11	20,795	0	72,617
95,000	0.00	0	22.99	21,836	0	73,658
100,000	0.00	0	22.90	22,902	0	74,724
105,000	0.00	0	22.87	24,018	0	75,839
110,000	0.00	0	22.85	25,133	0	76,954
115,000	0.00	0	22.82	26,248	0	78,070
120,000	0.00	0	22.80	27,363	0	79,185
125,000	0.00	0	22.78	28,478	0	80,300
130,000	0.00	0	22.76	29,594	0	81,415
135,000	0.00	0	22.75	30,709	0	82,530
140,000	0.00	0	22.73	31,824	0	83,646
145,000	0.00	0	22.72	32,939	0	84,761
150,000	0.00	0	22.70	34,054	0	85,876
155,000	0.00	0	22.69	35,170	0	86,991
160,000	0.00	0	22.68	36,285	0	88,106
165,000	0.00	0	22.67	37,400	0	89,222
170,000	0.00	0	22.66	38,515	0	90,337
175,000	0.00	0	22.65	39,630	0	91,452
180,000	0.00	0	22.64	40,746	0	92,567
185,000	0.00	0	22.63	41,861	0	93,682
190,000	0.00	0	22.62	42,976	0	94,798
195,000	0.00	0	22.61	44,091	0	95,913
200,000	0.00	0	22.60	45,203	0	97,025
205,000	0.00	0	22.59	46,315	0	98,137
210,000	0.00	0	22.58	47,427	0	99,249
215,000	0.00	0	22.58	48,540	0	100,361
220,000	0.00	0	22.57	49,652	0	101,473

Annual Bonus Income Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband						
	Child Support		Spousal Support		Total CS	Total SS
Husband's Bonus	% of bonus	\$	% of bonus	\$		(adjusted)
225,000	0.00	0	22.56	50,764	0	102,585
230,000	0.00	0	22.55	51,876	0	103,697
235,000	0.00	0	22.55	52,988	0	104,810
240,000	0.00	0	22.54	54,100	0	105,922
245,000	0.00	0	22.54	55,212	0	107,034
250,000	0.00	0	22.53	56,324	0	108,146
255,000	0.00	0	22.50	57,366	0	109,187
260,000	0.00	0	22.46	58,402	0	110,224
265,000	0.00	0	22.43	59,442	0	111,264
270,000	0.00	0	22.40	60,483	0	112,305
275,000	0.00	0	22.37	61,524	0	113,346
280,000	0.00	0	22.34	62,565	0	114,387
285,000	0.00	0	22.32	63,606	0	115,428
290,000	0.00	0	22.29	64,647	0	116,469
295,000	0.00	0	22.27	65,688	0	117,510
300,000	0.00	0	22.24	66,729	0	118,551
305,000	0.00	0	22.22	67,770	0	119,592
310,000	0.00	0	22.20	68,811	0	120,633
315,000	0.00	0	22.12	69,685	0	121,506
320,000	0.00	0	22.04	70,516	0	122,337
325,000	0.00	0	21.95	71,347	0	123,168
330,000	0.00	0	21.87	72,178	0	123,999
335,000	0.00	0	21.79	73,009	0	124,830
340,000	0.00	0	21.72	73,836	0	125,658
345,000	0.00	0	21.64	74,647	0	126,469
350,000	0.00	0	21.56	75,458	0	127,280
355,000	0.00	0	21.48	76,269	0	128,091
360,000	0.00	0	21.41	77,080	0	128,902
365,000	0.00	0	21.34	77,891	0	129,713
370,000	0.00	0	21.33	78,905	0	130,727
375,000	0.00	0	21.31	79,926	0	131,748
380,000	0.00	0	21.30	80,947	0	132,769
385,000	0.00	0	21.29	81,968	0	133,789
390,000	0.00	0	21.28	82,989	0	134,810
395,000	0.00	0	21.27	84,010	0	135,831
400,000	0.00	0	21.26	85,031	0	136,852
405,000	0.00	0	21.25	86,052	0	137,874
410,000	0.00	0	21.24	87,073	0	138,895
415,000	0.00	0	21.23	88,094	0	139,916
420,000	0.00	0	21.22	89,115	0	140,937
425,000	0.00	0	21.21	90,136	0	141,958
430,000	0.00	0	21.20	91,157	0	142,979
435,000	0.00	0	21.19	92,178	0	144,000
440,000	0.00	0	21.18	93,199	0	145,021
445,000	0.00	0	21.17	94,214	0	146,035

Annual Bonus Income
Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband						Total CS	Total SS (adjusted)
Child Support			Spousal Support				
Husband's Bonus	% of bonus	\$	% of bonus	\$			
450,000	0.00	0	21.16	95,215	0		147,036
455,000	0.00	0	21.15	96,216	0		148,037
460,000	0.00	0	21.13	97,217	0		149,038
465,000	0.00	0	21.12	98,218	0		150,039
470,000	0.00	0	21.11	99,219	0		151,040
475,000	0.00	0	21.09	100,186	0		152,007
480,000	0.00	0	21.07	101,147	0		152,968
485,000	0.00	0	21.05	102,108	0		153,929
490,000	0.00	0	21.03	103,069	0		154,890
495,000	0.00	0	21.02	104,030	0		155,851
500,000	0.00	0	21.00	104,991	0		156,812

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SASHA ANGELA TAN-TORRES,

Petitioner

VS.

ADRIAN ELLIOTT HOUSE,

Respondent

) Case Number: FDI-25-801903

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS,
RETROACTIVE SUPPORT; FORENSIC ACCOUNTING FEES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Sasha Tan-Torres (Wife) and Respondent Adrian House (Husband). The parties married on 11/15/2022 and while the parties disagree regarding their exact date of separation, they agree they separated in the Summer of 2025, for a marriage of 2 years and at least 6 months. The parties have no minor children. Wife is represented by attorney Brett Berman. Husband is represented by attorney Arlette Argyris.
- 2) On for hearing is Wife's Request for Order filed 12/16/2025. Wife requests temporary spousal support retroactive to the date the Petition for Dissolution was filed (9/10/2025), \$70,000 in need-based attorney's fees, and \$25,000 for forensic accounting fees. Wife states she supported Husband for many years before marriage (before Husband became a "double board certified plastic surgeon") and that she cannot maintain their lavish marital standard of living on her income alone. Wife states the parties started dating in February 2017 when Husband was a medical resident. The Court notes that Husband states he has been working as a self-employed

1 physician since 2021 (since before the parties married). Wife also states that while Husband pays
2 himself a salary, much of his income is maintained in the business.

- 3 3) Attached to Wife's Request for Order is a declaration of Wife's attorney. Wife's attorney
4 estimates that Wife will incur an additional \$10,330 to review the opposition pleadings, prepare
5 reply documents, conduct legal research, and prepare for and appear at the hearing. Wife's
6 attorney also anticipates performing the following additional tasks: reviewing outstanding
7 discovery responses, possible meet and confer and / or motion to compel, numerous additional
8 client meetings and communications with Husband's attorney, possible preparation of a global
9 settlement offer, and prepare for and attend trial if the matter does not settle.
- 10 4) On 12/12/2025, Wife filed an Income and Expense Declaration. Wife states she is 35 years old
11 and has college and Masters degrees. Wife states she has been employed in business development
12 for Samara Aerospace since 6/16/2025. Wife states she earns \$12,088 in gross per month. Wife
13 states she took the Samara Aerospace job "with a significant pay cut from my previous job (the
14 Court notes Wife previously worked at an engineering consulting firm) because Adrian said he
15 would support me, given all the prior years that I supported him." Wife states she has \$63,300 in
16 cash, \$19,100 in investments, and \$339,757 in 401(k) plans. Wife states her estimated monthly
17 expenses total \$14,557, which includes \$4,587 per month in payments towards credit card debts.
18 Wife lists \$15,200 in credit card debt. Wife states she has paid her attorney \$5,418 from her
19 savings to date and owes \$0. Her attorney charges an hourly rate of \$795. Her attorney's
20 associates charge an hourly rate of \$500 - \$595.
- 21 5) On 12/12/2025, Wife filed a declaration of Jennifer Magnes, CPA. Ms. Magnes states she
22 estimates that Wife will incur \$25,000 for Ms. Magnes to prepare a report of gross adjusted
23 income available for support, prepare a community and separate property balance sheet, and any
24 other tasks which may be requested of her.
- 25 6) On 12/23/2025, Wife filed a Witness List stating she intends to present the following witnesses at
26 the 3/5/2026 hearing: Wife (1 hour of direct examination), Husband (1 hour of direct
27 examination), Wife's attorney (15 minutes of testimony), and Jennifer Magnes, CPA (1 hour of
28 testimony).
- 29

1 7) On 2/20/2026, Husband filed a Responsive Declaration asking the Court to deny all of Wife's
2 requests. Husband states the parties' lifestyle was not lavish and that to the extent the parties
3 spent significant sums, it was Wife's choice to do so. Husband states he is a plastic surgeon with
4 his own medical practice that is set up as an S-Corporation and he is a W-2 employee of the
5 corporation. Husband states he earns \$13,346 in gross per month and owes half a million dollars
6 in student debt. Husband states Wife's request for \$70,000 in attorney's fees for a two and a half
7 year marriage is "completely unreasonable." Husband states his attorney has provided Wife's
8 attorney with all financial records, both personal and business related, but Wife has made no
9 attempts at settlement of this case. Husband states a forensic accountant is not necessary in this
10 case particularly where Wife has "retained counsel in Beverly Hills whose rate is nearly \$800 per
11 hour, yet she needs an accountant to determine the community assets." Husband states he would
12 consider the possibility of a joint neutral expert to analyze certain financial aspects of the case but
13 Wife has not suggested that.

14 8) On 2/20/2026, Husband filed an Income and Expense Declaration. Husband states he is 37 years
15 old and has a college degree and a medical degree. Husband states he has been self-employed as a
16 physician since 7/1/2021. Husband states he earns \$13,346 in gross monthly salary. Husband lists
17 no self-employment income. Husband states he has \$67,112 in cash savings, \$650,706 in
18 investments, and "minimal" personal property. Husband states his monthly expenses total
19 \$14,444.10. Husband states he owes \$495,884 in student loans. Husband states he has paid his
20 attorney \$20,889 to date and owes \$0.

21 9) Per the Findings and Order After Hearing filed 3/19/2026, at the prior 3/5/2026 hearing, the Court
22 continued the hearing to 5/5/2026 due to both parties' not complying with San Francisco Local
23 Rules 11.7(A)(2)(b) and (e) (requiring the parties to provide certain financial records) and
24 awarded Wife \$25,000 in need-based attorney's fees subject to reallocation at the 5/5/2026
25 hearing date.

26 10) On 4/10/2026, Wife filed an Income and Expense Declaration. Wife states that she now earns
27 \$12,500 in gross per month plus \$200 per month in dividend / interest income. Wife states she
28 has \$48,100 in cash, \$19,048 in investments, and \$344,049 in 401(k) plans. Wife states that her
29 estimated monthly expenses total \$16,793, which includes \$8,893 per month in payments towards

1 credit card debts. Wife lists \$13,723 in credit card debt. Wife state she had paid her attorney
2 \$38,040 using savings and owes \$0.

3 11) On 4/13/2026, Wife filed a declaration of Jennifer Magnes, CPA. Ms. Magnes states that
4 Husband provided discovery response “less than a week ago” and she has not yet had an
5 opportunity to review it. However, based on Husband’s tax returns and W2, Ms. Magnes
6 estimates that Husband’s average monthly gross income available for support is at least \$53,806.
7 Ms. Magnes this is “without any adjustments for perquisites, non-recurring events, or any other
8 potential normalizing adjustments that would be necessary to prepare a full and thorough
9 analysis.” The \$53,806 figure includes Husband’s salary of \$13,347 per month, distributions to
10 himself of \$154,229 in 2025, and the fact that Husband had \$438,701 in his business bank
11 account at year-end in 2025 and that balance rose to \$530,000 as of 4/1/2026. Ms. Magnes
12 included a proposed support calculation which shows that monthly guideline spousal support
13 payable to Wife is \$9,712.

14 12) On 4/28/2026, Husband filed a Statement of Support Calculations. Husband states that his
15 business is operating at a loss for the period 11/1/2025 – 4/1/2026. Husband states that while he
16 retains finds in the business, “these are retained for necessary operating expenses” including a
17 “Hyperbaric Chamber costing \$50,000 and additional equipment will need to be purchased.”
18 Husband also states that he recently moved his practice, incurring significant costs. Husband
19 states that all of his “operating expenses and retention of funds for drugs, equipment, and other
20 necessities are clearly documented, verified, etc.” Husband states that based on his salary of
21 \$13,345 per month and Wife’s salary of \$12,500 per month, temporary guideline spousal support
22 amounts to \$0.

23 13) Husband lodged various financial records, which show the following:

24 a. Husband’s 2024 Profit and Loss Statement

25 i. Gross profit: \$779,850

26 ii. Total expenses: \$645,673

27 iii. Net income: \$134,197

28 b. Husband’s 2025 Profit and Loss Statement

29 i. Gross profit: \$1,433,571

- ii. Total expenses: \$954,549 (not including depreciation)
- iii. Net income: \$479,022 (not including depreciation)
- c. Husband's 2024 Tax Returns, which show distributions to Husband of \$325,382
- d. Husband's 2025 Tax Returns, which show distributions to Husband of \$154,229
- e. Husband's Profit and Loss for 11/22/2025 – 4/1/2026
 - i. Gross profit: \$292,557
 - ii. Total expenses: \$376,430 (not including depreciation)
 - iii. Net income: (\$83,874) (not including depreciation)
- f. Husband's 2025 W2, which shows showing gross earnings of \$160,160, which averages out to \$13,347 per month
- g. Husband's paystub for pay period ending 4/10/2026 which shows biweekly gross pay of \$6,160, which averages out to \$13,347 per month

B. Findings and Order

1) Base Temporary Spousal Support

- a. Effective 9/10/2025, in accordance with the XSpouse calculation attached hereto and incorporated herein, the Court hereby sets temporary spousal support at \$0.

2) Smith / Ostler Spousal Support

- a. Effective 9/10/2025, the parties shall pay Smith / Ostler spousal support for any income they earn above their base salaries in accordance with the Bonus Reports, attached hereto and incorporated herein. The type of income from which the parties shall pay Smith / Ostler spousal support includes bonus income and dividends and interest. Husband shall also pay Smith / Ostler spousal support on any distributions he takes from HouseMD Plastics.
- b. The Court's jurisdiction to award Smith / Ostler spousal support for any net income earned from HouseMD Plastics that is not distributed to Husband as well as for perquisites paid on Husband's behalf by HouseMD Plastics for the period 9/10/2025 and going forward is reserved, as the Court finds it needs additional information from the parties to adjudicate this issue that cannot be resolved at a short-cause calendar. The parties shall meet and confer regarding this issue.

1 c. The parties shall engage in quarterly true-ups to determine Smith / Ostler spousal support
2 owed. Commencing 2026, no later than April 15th, July 15th, October 15th, and January
3 15th, the parties shall exchange documentation showing all income earned in the
4 immediately preceding 3 months. The parties shall thereafter meet and confer to
5 determine Smith / Ostler support owed between the parties, to be paid no later than April
6 30th, July 31st, October 31st, and January 31st. The true-up to occur by 7/15/2026 shall
7 encompass income earned between 4/1/2026 – 6/30/2026.

8 3) Smith / Ostler Spousal Support for the period 9/10/2025 – 3/31/2026

- 9 a. The Court finds that Husband owes Wife \$5,430 in Smith / Ostler support for the period
10 9/10/2025 through 12/31/2025 based on his distributions from HouseMD Plastics in
11 2025. This is based on the following. 112 days elapsed between 9/10/2025 through
12 12/31/2025, which represents 31% of the year. $0.31 \times \$154,229$ (distributed to Husband
13 in 2025) = \$47,811. According to the Bonus Report, Husband owes Wife \$5,430 in Smith
14 / Ostler spousal support on this amount.
- 15 b. No later than 5/15/2026, the parties shall exchange documents evidencing all income
16 earned (and distributions taken by Husband) between 9/10/2025 through 3/31/2026 and
17 shall thereafter meet and confer to determine total Smith / Ostler owed for this period.
18 Smith / Ostler spousal support for 9/10/2025 – 3/31/2026 shall be paid no later than
19 5/31/2026.

20 4) Attorney's Fees and Costs

- 21 a. The Court finds based largely on the significant investment holdings of Husband that
22 there is a significant disparity in access to funds to pay attorney's fees and costs. The
23 Court finds that Husband has the ability to pay for his own attorney's fees and costs as
24 well as Wife's. The Court finds good cause to award to Wife \$65,000 for attorney's fees
25 and costs (including forensic accounting fees), which the Court finds is a just, reasonable,
26 and necessary amount. This amount is being awarded to cover fees and costs incurred by
27 Wife through entry of final Judgment if the parties are able to reach a global settlement in
28 their case. If a long-cause hearing is set in this matter, this Court's jurisdiction to
29

1 augment this fee award is reserved. Husband shall pay this amount to Wife from his
2 separate property investment and cash holdings no later than 5/15/2026.

3 5) Wife's attorney shall prepare the Findings and Order After Hearing.

4 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
5 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
6 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
7 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
8 proposed order after hearing directly to the court. Failure to submit the order after hearing within
9 10 days may allow the other party to prepare a proposed order and submit it to the court in
10 accordance with CA Rules of Court, Rule 5.125(d).

Fixed Shares	Husband	Wife	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	0	2026			
% time with NCP	0.00 %	0.00 %		Comb. net spendable	18363	18363
Filing status	MFS->	<-MFS	GUIDELINE	Percent change	0%	0%
# exemptions	1 *	1 *	Nets(adjusted)	Husband		
Wages+salary	13347	12500	Husband	9651		
Self-employed income	0	0	Wife	8712		
Other taxable income	0	0	Total	18363		
TANF+CS received	0	0	Support			
Other nontaxable income	0	0	Addons	0	% of combined spendable	53%
New spouse income	0	0	Guideln CS	0	% of saving over guideline	0%
401(k) employee contrib	2000	625	S.Clara SS	0	Total taxes	3696
Adjustments to income	0	0	Total	0	Dep. exemption value	0
SS paid prev marriage	0	0	-		# withholding allowances	0
CS paid prev marriage	0	0			Net wage paycheck	6726
Health insurance	0	0		Wife		
Other medical expense	0	0		Payment cost/benefit	0	0
Property tax expense	0	0		Net spendable income	8712	8712
Ded interest expense	0	0	Proposed	Change from guideline	0	0
Charitable contributions	0	0	Tactic 9	% of combined spendable	47%	47%
Misc tax deductions	0	0	CS	0	% of saving over guideline	0%
Qual bus income ded	0	0	SS	0	Total taxes	3788
Required union dues	0	0	Total	0	Dep. exemption value	0
Mandatory retirement	0	0			# withholding allowances	0
Hardship deduction	0 *	0 *	Saving	0	Net wage paycheck	7619
Other GDL deductions	0	0	Releases	0		
Child care expenses	0	0				

Annual Bonus Income Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband

Husband's Bonus	Child Support		Spousal Support		Total CS	Total SS (adjusted)
	% of bonus	\$	% of bonus	\$		
0	0.00	0	0.00	0	0	0
5,000	0.00	0	0.00	0	0	0
10,000	0.00	0	0.00	0	0	0
15,000	0.00	0	0.00	0	0	0
20,000	0.00	0	0.00	0	0	0
25,000	0.00	0	0.00	0	0	0
30,000	0.00	0	3.39	1,017	0	1,017
35,000	0.00	0	6.51	2,278	0	2,278
40,000	0.00	0	8.85	3,539	0	3,539
45,000	0.00	0	10.67	4,800	0	4,800
50,000	0.00	0	12.12	6,061	0	6,061
55,000	0.00	0	13.31	7,322	0	7,322
60,000	0.00	0	14.31	8,583	0	8,583
65,000	0.00	0	15.14	9,844	0	9,844
70,000	0.00	0	15.86	11,105	0	11,105
75,000	0.00	0	16.49	12,366	0	12,366
80,000	0.00	0	17.03	13,627	0	13,627
85,000	0.00	0	17.39	14,783	0	14,783
90,000	0.00	0	17.65	15,884	0	15,884
95,000	0.00	0	17.88	16,985	0	16,985
100,000	0.00	0	18.09	18,086	0	18,086
105,000	0.00	0	18.27	19,187	0	19,187
110,000	0.00	0	18.44	20,288	0	20,288
115,000	0.00	0	18.60	21,389	0	21,389
120,000	0.00	0	18.74	22,490	0	22,490
125,000	0.00	0	18.87	23,588	0	23,588
130,000	0.00	0	18.98	24,680	0	24,680
135,000	0.00	0	19.09	25,771	0	25,771
140,000	0.00	0	19.15	26,817	0	26,817
145,000	0.00	0	19.21	27,848	0	27,848
150,000	0.00	0	19.25	28,879	0	28,879
155,000	0.00	0	19.30	29,911	0	29,911
160,000	0.00	0	19.34	30,949	0	30,949
165,000	0.00	0	19.39	31,990	0	31,990
170,000	0.00	0	19.43	33,031	0	33,031
175,000	0.00	0	19.47	34,072	0	34,072
180,000	0.00	0	19.51	35,113	0	35,113
185,000	0.00	0	19.54	36,154	0	36,154
190,000	0.00	0	19.58	37,195	0	37,195
195,000	0.00	0	19.61	38,236	0	38,236
200,000	0.00	0	19.64	39,277	0	39,277
205,000	0.00	0	19.67	40,318	0	40,318
210,000	0.00	0	19.69	41,359	0	41,359
215,000	0.00	0	19.72	42,400	0	42,400
220,000	0.00	0	19.75	43,441	0	43,441

Annual Bonus Income Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband						
Child Support			Spousal Support		Total CS	Total SS (adjusted)
Husband's Bonus	% of bonus	\$	% of bonus	\$		
225,000	0.00	0	19.77	44,482	0	44,482
230,000	0.00	0	19.79	45,523	0	45,523
235,000	0.00	0	19.81	46,564	0	46,564
240,000	0.00	0	19.84	47,605	0	47,605
245,000	0.00	0	19.86	48,646	0	48,646
250,000	0.00	0	19.87	49,687	0	49,687
255,000	0.00	0	19.89	50,720	0	50,720
260,000	0.00	0	19.90	51,741	0	51,741
265,000	0.00	0	19.91	52,756	0	52,756
270,000	0.00	0	19.90	53,737	0	53,737
275,000	0.00	0	19.90	54,718	0	54,718
280,000	0.00	0	19.89	55,699	0	55,699
285,000	0.00	0	19.89	56,680	0	56,680
290,000	0.00	0	19.88	57,661	0	57,661
295,000	0.00	0	19.88	58,642	0	58,642
300,000	0.00	0	19.87	59,623	0	59,623
305,000	0.00	0	19.87	60,604	0	60,604
310,000	0.00	0	19.87	61,585	0	61,585
315,000	0.00	0	19.86	62,566	0	62,566
320,000	0.00	0	19.86	63,547	0	63,547
325,000	0.00	0	19.85	64,528	0	64,528
330,000	0.00	0	19.85	65,508	0	65,508
335,000	0.00	0	19.84	66,469	0	66,469
340,000	0.00	0	19.83	67,430	0	67,430
345,000	0.00	0	19.82	68,391	0	68,391
350,000	0.00	0	19.81	69,352	0	69,352
355,000	0.00	0	19.81	70,313	0	70,313
360,000	0.00	0	19.80	71,274	0	71,274
365,000	0.00	0	19.79	72,235	0	72,235
370,000	0.00	0	19.78	73,196	0	73,196
375,000	0.00	0	19.78	74,157	0	74,157
380,000	0.00	0	19.77	75,118	0	75,118
385,000	0.00	0	19.76	76,079	0	76,079
390,000	0.00	0	19.75	77,040	0	77,040
395,000	0.00	0	19.75	78,001	0	78,001
400,000	0.00	0	19.74	78,962	0	78,962
405,000	0.00	0	19.73	79,923	0	79,923
410,000	0.00	0	19.73	80,884	0	80,884
415,000	0.00	0	19.72	81,845	0	81,845
420,000	0.00	0	19.72	82,806	0	82,806
425,000	0.00	0	19.71	83,767	0	83,767
430,000	0.00	0	19.70	84,728	0	84,728
435,000	0.00	0	19.70	85,689	0	85,689
440,000	0.00	0	19.69	86,650	0	86,650
445,000	0.00	0	19.69	87,611	0	87,611

Annual Bonus Income Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband						
Child Support			Spousal Support		Total CS	Total SS (adjusted)
Husband's Bonus	% of bonus	\$	% of bonus	\$		
450,000	0.00	0	19.68	88,572	0	88,572
455,000	0.00	0	19.68	89,533	0	89,533
460,000	0.00	0	19.67	90,494	0	90,494
465,000	0.00	0	19.67	91,455	0	91,455
470,000	0.00	0	19.66	92,416	0	92,416
475,000	0.00	0	19.66	93,377	0	93,377
480,000	0.00	0	19.65	94,338	0	94,338
485,000	0.00	0	19.65	95,299	0	95,299
490,000	0.00	0	19.64	96,260	0	96,260
495,000	0.00	0	19.64	97,221	0	97,221
500,000	0.00	0	19.64	98,182	0	98,182
505,000	0.00	0	19.63	99,143	0	99,143
510,000	0.00	0	19.63	100,104	0	100,104
515,000	0.00	0	19.62	101,065	0	101,065
520,000	0.00	0	19.62	102,026	0	102,026
525,000	0.00	0	19.62	102,987	0	102,987
530,000	0.00	0	19.61	103,948	0	103,948
535,000	0.00	0	19.61	104,909	0	104,909
540,000	0.00	0	19.61	105,870	0	105,870
545,000	0.00	0	19.60	106,831	0	106,831
550,000	0.00	0	19.60	107,792	0	107,792
555,000	0.00	0	19.60	108,753	0	108,753
560,000	0.00	0	19.59	109,714	0	109,714
565,000	0.00	0	19.59	110,675	0	110,675
570,000	0.00	0	19.59	111,636	0	111,636
575,000	0.00	0	19.58	112,597	0	112,597
580,000	0.00	0	19.58	113,558	0	113,558
585,000	0.00	0	19.58	114,519	0	114,519
590,000	0.00	0	19.57	115,480	0	115,480
595,000	0.00	0	19.57	116,441	0	116,441
600,000	0.00	0	19.57	117,402	0	117,402
605,000	0.00	0	19.56	118,363	0	118,363
610,000	0.00	0	19.56	119,324	0	119,324
615,000	0.00	0	19.56	120,285	0	120,285
620,000	0.00	0	19.56	121,246	0	121,246
625,000	0.00	0	19.55	122,207	0	122,207
630,000	0.00	0	19.55	123,168	0	123,168
635,000	0.00	0	19.55	124,129	0	124,129
640,000	0.00	0	19.54	125,076	0	125,076
645,000	0.00	0	19.54	126,017	0	126,017
650,000	0.00	0	19.53	126,958	0	126,958
655,000	0.00	0	19.53	127,899	0	127,899
660,000	0.00	0	19.52	128,840	0	128,840
665,000	0.00	0	19.52	129,781	0	129,781
670,000	0.00	0	19.51	130,722	0	130,722

Annual Bonus Income Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband						
Child Support			Spousal Support		Total CS	Total SS (adjusted)
Husband's Bonus	% of bonus	\$	% of bonus	\$		
675,000	0.00	0	19.51	131,663	0	131,663
680,000	0.00	0	19.50	132,604	0	132,604
685,000	0.00	0	19.50	133,545	0	133,545
690,000	0.00	0	19.49	134,486	0	134,486
695,000	0.00	0	19.49	135,427	0	135,427
700,000	0.00	0	19.48	136,368	0	136,368
705,000	0.00	0	19.48	137,309	0	137,309
710,000	0.00	0	19.47	138,250	0	138,250
715,000	0.00	0	19.47	139,191	0	139,191
720,000	0.00	0	19.46	140,132	0	140,132
725,000	0.00	0	19.46	141,073	0	141,073
730,000	0.00	0	19.45	142,014	0	142,014
735,000	0.00	0	19.45	142,955	0	142,955
740,000	0.00	0	19.45	143,896	0	143,896
745,000	0.00	0	19.44	144,837	0	144,837
750,000	0.00	0	19.44	145,778	0	145,778
755,000	0.00	0	19.43	146,719	0	146,719
760,000	0.00	0	19.43	147,660	0	147,660
765,000	0.00	0	19.42	148,601	0	148,601
770,000	0.00	0	19.42	149,542	0	149,542
775,000	0.00	0	19.42	150,483	0	150,483
780,000	0.00	0	19.41	151,424	0	151,424
785,000	0.00	0	19.41	152,365	0	152,365
790,000	0.00	0	19.41	153,306	0	153,306
795,000	0.00	0	19.40	154,247	0	154,247
800,000	0.00	0	19.40	155,188	0	155,188
805,000	0.00	0	19.39	156,129	0	156,129
810,000	0.00	0	19.39	157,070	0	157,070
815,000	0.00	0	19.39	158,011	0	158,011
820,000	0.00	0	19.38	158,952	0	158,952
825,000	0.00	0	19.38	159,893	0	159,893
830,000	0.00	0	19.38	160,834	0	160,834
835,000	0.00	0	19.37	161,775	0	161,775
840,000	0.00	0	19.37	162,716	0	162,716
845,000	0.00	0	19.37	163,657	0	163,657
850,000	0.00	0	19.36	164,598	0	164,598
855,000	0.00	0	19.36	165,539	0	165,539
860,000	0.00	0	19.36	166,480	0	166,480
865,000	0.00	0	19.36	167,421	0	167,421
870,000	0.00	0	19.35	168,361	0	168,361
875,000	0.00	0	19.35	169,282	0	169,282
880,000	0.00	0	19.34	170,203	0	170,203
885,000	0.00	0	19.34	171,124	0	171,124
890,000	0.00	0	19.33	172,045	0	172,045
895,000	0.00	0	19.33	172,966	0	172,966

Annual Bonus Income Husband

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Wife: 0
Prior relationship(s): OFF

Additional Cost to Husband						
	Child Support		Spousal Support		Total CS	Total SS
Husband's Bonus	% of bonus	\$	% of bonus	\$		(adjusted)
900,000	0.00	0	19.32	173,887	0	173,887
905,000	0.00	0	19.32	174,808	0	174,808
910,000	0.00	0	19.31	175,729	0	175,729
915,000	0.00	0	19.31	176,650	0	176,650
920,000	0.00	0	19.30	177,571	0	177,571
925,000	0.00	0	19.30	178,492	0	178,492
930,000	0.00	0	19.29	179,413	0	179,413
935,000	0.00	0	19.29	180,334	0	180,334
940,000	0.00	0	19.28	181,255	0	181,255
945,000	0.00	0	19.28	182,176	0	182,176
950,000	0.00	0	19.27	183,097	0	183,097
955,000	0.00	0	19.27	184,018	0	184,018
960,000	0.00	0	19.26	184,939	0	184,939
965,000	0.00	0	19.26	185,860	0	185,860
970,000	0.00	0	19.26	186,781	0	186,781
975,000	0.00	0	19.25	187,702	0	187,702
980,000	0.00	0	19.25	188,623	0	188,623
985,000	0.00	0	19.24	189,544	0	189,544
990,000	0.00	0	19.24	190,465	0	190,465
995,000	0.00	0	19.23	191,386	0	191,386
1,000,000	0.00	0	19.23	192,307	0	192,307

Annual Bonus Income
Wife

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Husband: 0
Prior relationship(s): OFF

Additional Cost to Wife							
Child Support			Spousal Support			Total CS	Total SS
Wife's Bonus	% of bonus	\$	% of bonus	\$			(adjusted)
0	0.00	0	0.00	0		0 R	0 R
1,000	0.00	0	0.00	0		0	0
2,000	0.00	0	0.00	0		0	0
3,000	0.00	0	0.00	0		0	0
4,000	0.00	0	0.00	0		0	0
5,000	0.00	0	0.00	0		0	0
6,000	0.00	0	0.00	0		0	0
7,000	0.00	0	0.00	0		0	0
8,000	0.00	0	0.00	0		0	0
9,000	0.00	0	0.00	0		0	0
10,000	0.00	0	0.00	0		0	0
11,000	0.00	0	0.00	0		0	0
12,000	0.00	0	0.00	0		0	0
13,000	0.00	0	0.00	0		0	0
14,000	0.00	0	0.00	0		0	0
15,000	0.00	0	0.00	0		0	0
16,000	0.00	0	0.00	0		0	0
17,000	0.00	0	0.00	0		0	0
18,000	0.00	0	0.00	0		0	0
19,000	0.00	0	0.00	0		0	0
20,000	0.00	0	0.00	0		0	0
21,000	0.00	0	0.00	0		0	0
22,000	0.00	0	0.00	0		0	0
23,000	0.00	0	0.00	0		0	0
24,000	0.00	0	0.00	0		0	0
25,000	0.00	0	0.00	0		0	0
26,000	0.00	0	0.00	0		0	0
27,000	0.00	0	0.00	0		0	0
28,000	0.00	0	0.00	0		0	0
29,000	0.00	0	0.00	0		0	0
30,000	0.00	0	0.00	0		0	0
31,000	0.00	0	0.00	0		0	0
32,000	0.00	0	0.00	0		0	0
33,000	0.00	0	0.00	0		0	0
34,000	0.00	0	0.00	0		0	0
35,000	0.00	0	0.00	0		0	0
36,000	0.00	0	0.00	0		0	0
37,000	0.00	0	0.00	0		0	0
38,000	0.00	0	0.00	0		0	0
39,000	0.00	0	0.00	0		0	0
40,000	0.00	0	0.00	0		0	0
41,000	0.00	0	0.00	0		0	0
42,000	0.00	0	0.00	0		0	0
43,000	0.00	0	0.00	0		0	0
44,000	0.00	0	0.00	0		0	0

Annual Bonus Income

Wife

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Husband: 0
Prior relationship(s): OFF

Additional Cost to Wife						
Child Support			Spousal Support			Total CS
Wife's Bonus	% of bonus	\$	% of bonus	\$		Total SS (adjusted)
45,000	0.00	0	0.00	0	0	0
46,000	0.00	0	0.00	0	0	0
47,000	0.00	0	0.00	0	0	0
48,000	0.00	0	0.00	0	0	0
49,000	0.00	0	0.00	0	0	0
50,000	0.00	0	0.00	0	0	0
51,000	0.00	0	0.00	0	0	0
52,000	0.00	0	0.00	0	0	0
53,000	0.00	0	0.00	0	0	0
54,000	0.00	0	0.00	0	0	0
55,000	0.00	0	0.00	0	0	0
56,000	0.00	0	0.00	0	0	0
57,000	0.00	0	0.00	0	0	0
58,000	0.00	0	0.00	0	0	0
59,000	0.00	0	0.00	0	0	0
60,000	0.00	0	0.00	0	0	0
61,000	0.00	0	0.00	0	0	0
62,000	0.00	0	0.00	0	0	0
63,000	0.00	0	0.00	0	0	0
64,000	0.00	0	0.00	0	0	0
65,000	0.00	0	0.00	0	0	0
66,000	0.00	0	0.00	0	0	0
67,000	0.00	0	0.00	0	0	0
68,000	0.00	0	0.30	203	0	203
69,000	0.00	0	0.66	455	0	455
70,000	0.00	0	1.01	708	0	708
71,000	0.00	0	1.35	960	0	960
72,000	0.00	0	1.68	1,212	0	1,212
73,000	0.00	0	2.01	1,464	0	1,464
74,000	0.00	0	2.32	1,716	0	1,716
75,000	0.00	0	2.62	1,969	0	1,969
76,000	0.00	0	2.90	2,201	0	2,201
77,000	0.00	0	3.14	2,421	0	2,421
78,000	0.00	0	3.39	2,641	0	2,641
79,000	0.00	0	3.62	2,861	0	2,861
80,000	0.00	0	3.85	3,082	0	3,082
81,000	0.00	0	4.08	3,302	0	3,302
82,000	0.00	0	4.30	3,522	0	3,522
83,000	0.00	0	4.51	3,742	0	3,742
84,000	0.00	0	4.72	3,962	0	3,962
85,000	0.00	0	4.92	4,183	0	4,183
86,000	0.00	0	5.12	4,403	0	4,403
87,000	0.00	0	5.31	4,623	0	4,623
88,000	0.00	0	5.50	4,843	0	4,843
89,000	0.00	0	5.69	5,063	0	5,063

Annual Bonus Income Wife

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Husband: 0
Prior relationship(s): OFF

Additional Cost to Wife						
Child Support			Spousal Support			Total CS
Wife's Bonus	% of bonus	\$	% of bonus	\$		Total SS (adjusted)
90,000	0.00	0	5.87	5,284	0	5,284
91,000	0.00	0	6.05	5,504	0	5,504
92,000	0.00	0	6.22	5,724	0	5,724
93,000	0.00	0	6.39	5,944	0	5,944
94,000	0.00	0	6.56	6,164	0	6,164
95,000	0.00	0	6.72	6,385	0	6,385
96,000	0.00	0	6.88	6,605	0	6,605
97,000	0.00	0	7.04	6,825	0	6,825
98,000	0.00	0	7.19	7,045	0	7,045
99,000	0.00	0	7.34	7,265	0	7,265
100,000	0.00	0	7.49	7,486	0	7,486

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALANA CONNER,

Petitioner

VS.

HOWARD ROSE,

Respondent

) Case Number: FDI-26-802409

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, PROPERTY CONTROL, ORDERS
FOR VALUATION ACCESS AND PROPERTY RETRIEVAL; REQUEST FOR ORDER RE:
DISPOSITION OF REAL PROPERTY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Alana Conner (Wife) and Respondent Howard Rose (Husband) married on 2/5/2020
and separated on 12/15/2025, for a marriage of 5 years and 10 months. The parties have no minor
children. Wife is represented by attorney Amrit Kullar of the Lewellen Family Law Group.
Husband is self-represented.
- 2) On for hearing is Wife's Request for Order filed 3/20/2026. Wife states she has made good faith
efforts to settle the issues in the parties' case since their date of separation. Wife states the
primary issue remaining is the disposition of the marital residence located at 31 Navajo Ave. in
San Francisco. Wife states the parties agreed to obtain a neutral third-party appraisal to determine
the value of the property. After the appraisal was completed, Husband then refused to accept it
and has sent aggressive communications to Wife stating he is not required to agree to a buyout
and that Wife needs to accept a higher value. Wife asks the Court to:

- a. Grant Wife the right to buy out Husband's Navajo Ave. residence at the fair market value as of the date of separation based on the existing appraisal or another Court-ordered neutral third-party appraisal tied to the date of separation;
 - b. Order Husband to cooperate in all steps necessary to effectuate the buyout, including execution of all required documents;
 - c. Order the property to be immediately listed for sale with a Court-appointed real estate agent if a buyout is not completed within a time certain set by the Court;
 - d. Order both parties to cooperate with the list and sale of the property including reasonable access, preparation, and execution of all necessary documents; and
 - e. Set a timeline for completion of the buyout or sale to ensure prompt resolution.
- 3) Also on for hearing is Husband's Request for Order originally filed as an ex parte request on 4/10/2026. Husband states that while Wife is seeking a Court-ordered buyout, she is blocking Husband's right to obtain an independent valuation of the home. Husband states he is currently residing in Washington state. Husband states he contacted Wife to arrange a time to retrieve his belongings from the Navajo Ave. property, but Wife wants to move items that she deems his into a single room and forbid his access to other areas unless he hires and pays for a "licensed and insured professional service provider" to act as an observer. Husband states he was able to arrange a time to meet at the residence, but Wife hired third-party observer to monitor his movements and restrict him from accessing the stairwell or the main floor. Husband asks the Court to:
- a. Grant Husband access to all shared and common areas of the Navajo Ave. property including but not limited to the kitchen, living areas, dining rooms, garage, laundry facilities, bathrooms, and all outdoor spaces;
 - b. Prohibit Wife from designating or recharacterizing any common or shared areas as private or personal space for the purpose of denying Court-ordered access;
 - c. Permit Husband to give access to the home to up to three licensed real estate agents of Husband's choosing to perform a walkthrough of no more than 60 minutes with 48 hours' notice via text and email;

- d. Grant Husband unrestricted access to the entire residence for the purpose of identifying and removing his sole and separate property and permit Husband to remove property with 48 hours' notice via text and email;
 - e. Prohibit Wife from obstructing Husband's entry or removal of items during the noticed periods;
 - f. Husband to provide Wife with a fully copy of any written valuation estimates or reports within 48 hours of Husband's receipt.
- 4) On 4/8/2026, Wife filed a Responsive Declaration. Wife states there is no urgency for Husband's requests and she already put at issue the additional valuation of the property in her 3/20/2026 Request for Order. Wife states that Husband was able to remove a portion of his personal belongings. Wife states she was not present while Husband was there and, in her absence, she hired a licensed private investigator to act as a neutral observer who did not position himself on or near either staircase and did not physically or otherwise obstruct access to any area. Wife also states Husband did not attempt to access the upstairs during the retrieval. Wife also states that Husband participated in the previously performed appraisal. Wife states that multiple walkthroughs for additional valuations is excessive and introduce inconsistent and potentially biased valuation inputs.
- 5) On 4/8/2026, Wife's attorney filed a declaration statin that Husband improperly served his ex parte Request for Order directly on Wife even though Wife's attorney notified Husband that she is now represented by counsel.
- 6) Per the Temporary Emergency (Ex Parte) Orders filed 4/10/2026, the Court granted the following orders. The Court also set Husband's Request for Order filed 4/10/2026 for hearing on shortened time for 5/5/2026.
- a. VALUATION ACCESS: Respondent and his agents (including licensed real estate professionals) shall have unrestricted access to the interior and exterior of the residence for the purpose of valuation and appraisal.
 - b. NOTICE REQUIREMENT: Respondent shall provide Petitioner with 48 hours' written notice (via email or text) prior to any scheduled access.

- c. PROPERTY RETRIEVAL: Respondent is authorized to enter the residence to retrieve his personal property, professional records, electronics, and instruments during any noticed valuation period.
- d. NO INTERFERENCE: Petitioner is prohibited from obstructing entry, changing access codes without notice, or requiring Respondent to pay for third-party observers (such as private security) as a condition of entry.
- e. UNOBSTRUCTED ACCESS: Petitioner is prohibited from changing gate codes, door codes, or locks to the residence at 31 Navajo Ave without providing Respondent the new codes/keys at least 48 hours in advance of any noticed access.
- f. NO THIRD-PARTY REQUIREMENTS: Petitioner is prohibited from requiring Respondent to pay for or coordinate with third-party "observers," private security, or "guards" as a condition of entry.
- g. NON-INTERFERENCE: Petitioner shall not interfere with, harass, or follow Respondent or his agents while they are on the premises for the court-ordered purposes of valuation and property retrieval.

7) On 4/21/2026, Husband filed a Responsive Declaration to Wife's 3/20/2026 Request for Order. Husband states that Wife's attorney unilaterally increased the "previously observed 48-hour noticed period... to 72 hours," which led Husband to miss the deadline to file his tax returns. Husband states Petitioner has hired guards to prevent him from viewing the current state of the home, inventorying community property, and locating or retrieving his personal property situated throughout the house. Husband states Wife has taped off specific areas within the shared garage and common spaces. Husband states Wife's hired guards monitor and report his movements to Wife in real time. Husband asks the Court to:

- a. Order Wife to immediately cease the use of hired guards, observers, or monitors to oversee, record, or restrict Husband's access to the property;
- b. Grant Husband access to the entire residence (excluding Wife's private bedroom) to retrieve personal property and inventory community assets upon 48 hours' notice provided via email and/or text;

- c. If the Court declines to order an immediate sale, grant Husband access to up to three (3) licensed real estate agents of his choosing to perform interior and exterior evaluations for the purpose of establishing a neutral fair market value, with each visit limited to a duration of 60 minutes;
- d. Order Wife not to obstruct, "tape off," or otherwise interfere with Husband's access to any portion of the residence or lot (excluding Wife's private bedroom) during scheduled visits.
- e. Husband to provide Wife with copies of any resulting valuation reports ("CMAs or appraisals") within 48 hours of Husband's receipt of said documents.

8) On 4/21/2026, Husband filed a Supplemental Declaration which contains identical allegations and requests as his Responsive Declaration but includes additional exhibits.

B. Findings and Order

- 1) The following order set forth in the Court's Temporary Emergency Orders filed 4/10/2026 is vacated and set aside: Respondent and his agents (including licensed real estate professionals) shall have unrestricted access to the interior and exterior of the residence for the purpose of valuation and appraisal.
- 2) The following orders shall remain in full force and effect:
 - a. NOTICE REQUIREMENT: Respondent shall provide Petitioner with 48 hours' written notice (via email or text) prior to any scheduled access.
 - b. PROPERTY RETRIEVAL: Respondent is authorized to enter the residence to retrieve his personal property, professional records, electronics, and instruments during any noticed valuation period.
 - c. NO INTERFERENCE: Petitioner is prohibited from obstructing entry, changing access codes without notice, or requiring Respondent to pay for third-party observers (such as private security) as a condition of entry.
 - d. UNOBSTRUCTED ACCESS: Petitioner is prohibited from changing gate codes, door codes, or locks to the residence at 31 Navajo Ave without providing Respondent the new codes/keys at least 48 hours in advance of any noticed access.

- 1 e. NO THIRD-PARTY REQUIREMENTS: Petitioner is prohibited from requiring
2 Respondent to pay for or coordinate with third-party "observers," private security, or
3 "guards" as a condition of entry.

4 3) The Court also makes the following additional orders related to Husband's access to the home:

- 5 a. Husband is not permitted to enter Wife's bedroom even if Husband is entering the home
6 during a noticed period. Beyond Wife's bedroom, Husband is permitted to access the
7 entire residence and Wife is not permitted to obstruct Husband's access to any area in the
8 residence during a noticed period.
- 9 b. Wife may have a neutral third party present to observe while Husband is in the home.
10 The third party shall not obstruct Husband's movements or restrict Husband's access to
11 any area of the home.

12 4) The Court intends to appoint a real estate professional as the Court's Evidence Code section 730
13 expert to appraise the present-day value of the Navajo Ave. residence (per Family Code section
14 2552) The Court hereby sets a future hearing date of **Tuesday, 6/30/2026 at 9:00 AM in Dept.**
15 **404** to select and appoint an appraiser. The Court makes the following additional orders:

- 16 a. No later than 5/22/2026, the parties shall each propose to the other party the names of
17 two real estate professionals to perform the appraisal, who shall be different from the
18 appraiser who previously performed an appraisal of the home. The parties shall meet and
19 confer in advance of the next hearing date to select an appraiser.
- 20 b. Neither party may inform the new appraiser of the prior appraised value of the home or
21 provide the appraisal report to the new appraiser.
- 22 c. Both parties shall be CC'd on all communications with any potential appraisers,
23 including on initial communications to determine an appraiser's availability to serve as
24 the Court's Evidence Code section 730 appraiser expert.
- 25 d. If the parties are unable to reach an agreement, at least 5 calendar days prior to the next
26 hearing date, the parties shall file and serve a declaration (not to exceed 5 pages, not
27 including exhibits) explaining who they would like the Court to appoint. The real estate
28 professional's CV shall be attached to the declaration.
- 29

1 e. Once an appraiser has been selected either upon agreement of the parties or by Court
2 order, each party may submit to the appraiser a declaration (not to exceed 3 pages, not
3 including exhibits) of any information they think the appraiser should consider when
4 appraising the property. A copy of that declaration shall also be served on the other party.

5 5) The Court hereby sets a second hearing date of **Thursday, 8/6/2026 at 9:00 AM in Dept. 404** to
6 review the parties' positions regarding the appraisal, whether they intend to accept it or challenge
7 it.

8 6) The Court's jurisdiction to permit Wife to buy out Husband's community interest in the Navajo
9 Ave. residence or to order the Navajo Ave. property to be sold is reserved.

10 7) Wife's attorney shall prepare the Findings and Order After Hearing.

11 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
12 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
13 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
14 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
15 proposed order after hearing directly to the court. Failure to submit the order after hearing within
16 10 days may allow the other party to prepare a proposed order and submit it to the court in
17 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LILIANA BELTRAN-AGUIRRE,

Petitioner

VS.

DANIEL ALEXANDER MARTINEZ SANCHEZ,

Respondent

) Case Number: FDV-21-815915

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Liliana Beltran-Aguirre (Mother) and Daniel Alexander Martinez Sanchez (Father) have one minor child together, Adrian (DOB 12/26/2020, age 5). On 2/9/2022, the Court issued a 3-year restraining order against Father and awarded sole legal and sole physical custody to Mother, with no visitation to Father. At hearings that took place between 6/5/2024 and 1/18/2025, the Court ordered supervised visits for Father.
- 2) On 6/16/2025, the parties entered into a stipulation for unsupervised visits for Father every Sunday from 10am until 5pm and every Tuesday afternoon. On 9/4/2025, the Court denied Father's request for overnight visits but issued a holiday schedule for Father that included one overnight visit, maintained the Sunday and Tuesday visits, added a Thursday afternoon visit, and indicated it was inclined to award overnight visits at the next hearing.
- 3) In a tentative ruling issued for a 1/27/2026 review hearing, the Court expressed concern about the number of visits Father had missed but accepted his explanation that they were the result of car issues, which had since been resolved. The parties met and conferred before the 1/27/2026

1 hearing and accepted the Court's tentative ruling maintaining the Tuesday and Thursday
2 afternoon visits and awarding Father one overnight visit on alternating weekends commencing
3 2/27/2026, from 10am on Saturday to 10am on Sunday. The Court ordered that Mother shall have
4 a phone or video call with Adrian on Saturday night before bedtime, to take place at 7:30pm or
5 another mutually agreeable time. The Court set a further review hearing for 5/5/2026.

- 6 4) On 4/23/2026, Mother filed an update declaration stating Father missed 19 visits between
7 1/20/2026 and 4/21/2026 for various reasons, including car issues, Father's mistakenly believing
8 it was a Wednesday, oversleeping, choosing not to exercise his visits during the school strike, a
9 court appearance, not being able to make it to pick-up time, job orientations and work-related
10 issues, and his illness. Mother asks that if the Court is inclined to maintain overnight visits, she
11 would request that the Tuesday, Thursday, and alternating weekend visits continue, with Father
12 being required to provide updates as to what Adrian is eating during his visits, and for all other
13 orders from the 1/27/2026 hearing to remain in full force and effect.

- 14 5) Father has not filed an update declaration as of the time of this tentative ruling.

15 **B. Findings and Orders**

- 16 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
17 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
18 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
19 child is the United States.
- 20 2) The Court finds it is in Adrian's best interests to maintain the current order for sole legal custody
21 and sole physical custody to Mother, with parenting time for Father as set forth in the Findings
22 and Order after the 1/27/2026 hearing. Father shall endeavor to make all scheduled visits and
23 shall provide Mother with as much notice as possible if he will miss a visit.
- 24 3) All other orders not in conflict with these orders shall remain in full force and effect.
- 25 4) The Court will prepare the Findings and Order After Hearing.
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